

Kancharla Venkata Ramana Venkata Rao vs The State Of Andhra Pradesh on 14 June, 2021

"~ IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

"~ MONDAY, THE FOURTEENTH DAY OF JUNE,
TWO THOUSAND AND TWENTY ONE

; PRESENT:

"<THE HONOURABLE SRI JUSTICE CHEEKATI MANAVENDRANATH ROY

1A No. 1 OF 2021

7 IN

- CRLP NO: 2974 OF 2021

" Between:

. 1. Kancharla Venkata Ramana @ Venkata Rao, (A-1) S/o.Late Sri K. Guravayya Hindu, aged 38 years, Occ- Private Employee R/d.Y.S.R.Nagar, Narsapuram, W.G. District, AP

2. Kamana Nagini @ Kancherla Nagini (A-2), W/o.Sri K. Bala Satyanarayana: Hindu, aged 37 years, R/o.Door No.9-5-47/2A Devunithota, Roypet, 18th Ward Narasapur, VWV.G. District, AP

~ 3. Kosur} Latha @ Kancherla Latha (A-3}, W/o.Sri K-Rajasekhar Hindu, aged 39 years R/o.D.No.11-1-70/1, Opp.Nanna Mutton Shop Dargah Street, 13th: Ward, Narsapur W.G.District, Andhra Pradesh

4. Kaskani Triveni @ Venu @ Kancherla Trivent (A-4), W/o. Sri K. Venkateswara Rao Hindu, aged 50 years, R/o.Flat No.223, YSR Nagar 26th Ward, Narsapur, W.G_ District, AP

~. 5. Buddiga Durga @ Kancherla Durga (A-5), W/o. Sri B.Venkanna Hindu, aged 44 years R/o.D.No.53-2-2 Someswara Agraharam Palakopllu, W.G.Disirict, AP

~: 6 Kaatani Janaki@ Kancherla Janaki (A-6), WW/o.Sri K.Mohan Rao Hindu, aged 41 years, R/o.D.No.1-158, Behind Adilakshmi Temple Ravulapadu, Ravulapalem, E.G. District, AP

_7. Poorilla Parvati @ Kancherla Parvati (A-7), W/o.Sri P.Yesu Raju Aged 40 years, R/o.Narasayya Agraharam Laxmipathi Raju Street, Bhimavaram West Godavari District, AP

Petitioners/Ai to A-7

AND

~1. The State of Andhra Pradesh, Station House Officer Korukonda Police Station Korukonda, E.G.District Rep. by its Public Prosecutor High Court of A-P., Amaravathi Guntur District.

. 2. Kancharla Laxmi Revathi, VW/o.Sri K.Venkata Ramana Aged 37 years,
R/o.Korukonda Village Korukonda Mandal, E.G.District, AP
Respondents

' Counsel for the Petitioners: SRI K CHIDAMBARAM

'. Counsel for the Respondent No.1: PUBLIC PROSECUTOR

- Petition under Section 482 of Cr.P.C praying that in the circumstances stated in the memorandum of grounds filed in support of the Criminal Petition, the High Court may be pleased to grant stay of all further proceedings in FIR No.125/2021 Dt.26-03-2021 on the file of the Station House Officer, Korukonda Police Station, Korukonda, East Godavari District, Andhra Pradesh, pending disposal of CRLP No.2974 of 2021, on the file of the High Court.

The court while directing issue of notice to the Respondents herein to show cause as to why this application should not be complied with, made the following order.(The receipt of this order will be deemed to be the receipt of notice in the case)
The Court made the following
ORDER

"The ist petitioner is the husband of the de facto complainant and the other petitioners A-2 to A-7 are the married sisters of A-1. | The present report came to be lodged by the de facto complainant on 26.03.2021 alleging that the petitioners have subjected the de facto complainant to harassment by making illegal demands for additional dowry. However, the ~ To, record reveals that the de facto complainant and her husband, who is A-1, have "

been residing separately for more than ten years period. On a petition filed by A- 7, who is the husband, under Section 9 of the Hindu Marriage Act,1955, for restitution of conjugal rights in H.M.O.P. No.42 of 2008 on the file of the Senior Civil Judge, Narsapur, a decree for restitution of conjugal rights was passed directing the de facto complainant to join the company of her husband, who is A- 1, within three months, on 02.07.2010. It is the version of A-1 that she did not comply with the decree directions and she did not join his company till now. Therefore, he has filed a petition in H.M.O.P.No.55 of 2020 on the file of the Senior Civil Judge, Narsapur, seeking decree of divorce. The said petition was filed on 15.09.2020 and it is pending trial in the said Court. Thereafter, the present report came to be lodged on 26.03.2021. Therefore, the aforesaid facts and circumstances of the case throw any amount of doubt regarding the veracity of the allegations set out in the F.LR, which was lodged on 26.03.2021 after filing of the divorce petition and also regarding the genuineness of the report lodged by her.. The aforesaid documentary evidence on record lends great support to the petitioners version that they have been falsely implicated in this case with false allegations on account of filing of divorce petition by A-1.

So, the petitioners could make out a strong prima facie case warranting interference of this Court under Section 482 Cr.P.C to examine whether any case was in fact made out or not against the petitioners under Section 498A IPC and Sections 3 and 4 of the Dowry Prohibition Act for which the F.LR was registered.

Therefore, in the said facts and circumstances of the case, there shall be stay of further investigation till the next date of hearing. The investigating Officer is also directed not to take any coercive steps against the petitioners, till the next date of hearing."

SD/- CHITT] JOSERH ASSISTANT R er EGIST HTRUE COPY// * "GIS TRAR SECTION OFFICER

1. The Station House Officer, Korukonda Police Station, Korukonda, East Godavari | District, Andhra Pradesh.

2. Kancharla Laxmi Revathi, W/o.Sri K.Venkata Ramana Aged 37 years, R/o.Korukonda Village Korukonda Mandal, E.G. District, AP (by RPAD)

3. One CC to Sri K Chidambaram, Advocate [OPUC]

4. Two CCs to Public Prosecutor, High Court of Andhra Pradesh [OUT] oO One spare copy SP HIGH COURT CMRJ DATED: 14/06/2021 "ORDER 1A No. 1 OF 2021 IN et vo | CE Nw INTERIM DIRECTION